



**IN THE HIGH COURT OF ORISSA AT CUTTACK**

**CRLMC No.2198 of 2025**

***Ambuj Sharma***

***Petitioner***  
*Mr. Bigyan Kumar Sharma,*  
*Sr. Advocate*

*-versus-*

***State of Orissa and Anr.***

***Opp. Parties***  
*Mr.C.M.singh, A.S.C.*  
*Mr. Deepak Kumar Sahoo, Adv. For*  
*O.P. No.2*

**CORAM:**

**THE HON'BLE MR. JUSTICE A.K. MOHAPATRA**

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**Date of hearing: 29.01.2026 | Date of Judgment: 01.05.2026**

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**A.K. Mohapatra, J. :**

1. The present CRLMC petition has been filed by the Petitioner with a prayer to quash the Chargesheet bearing CS No.270 dated 31.08.2020, at Annexure-2, and the subsequent criminal proceeding bearing C.T(s) No.28 of 2020 pending in the Court of the learned Ad hoc Additional District & Sessions Judge (FTSC), Angul.



## **FACTS OF THE CASE**

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2. The genesis of the dispute, as gathered from the F.I.R and the Chargesheet at Annexures-1 and 2 respectively, in a nutshell, is as follows; On 20.04.2020, the Informant-Opposite Party No.2 (Debajani Pattanaik), then aged approximately 32 years, lodged an FIR before the Banarpal Police Station alleging that approximately three years prior to the date of the complaint, while the informant was working in a private company, she met the accused-Petitioner and developed a friendship with him. The Informant-Opposite Party No.2 has specifically alleged that on the 5th of June, 2016, the Petitioner took her to the National Thermal Power Corporation (NTPC) site at Kanhia, booked a room at one Hotel Kesari, and had forcible sexual intercourse with her. It has been further alleged in the F.I.R that upon protest, the Petitioner had assured the Informant that he would marry her, and on the strength of that assurance, the physical relationship between the parties continued some time. The F.I.R also reveals that when the informant-Opposite Party No.2 protested the



Petitioner's attempt to have sexual relationship with her, the Petitioner threatened to publicly circulate compromised photos and videos of her on social media.

3. The Informant has alleged that the Petitioner, despite his promise, ultimately denied to marry her on the basis of caste and cultural differences and married another person. The F.I.R also reveals that the Petitioner's father and his friends have also threatened injury upon the Informant. Consequently, the Informant lodged the instant FIR, at Annexure-1, on 20.04.2020 against the Petitioner and his parents, and, pursuant thereto P.S. Case No.104 dated 20.04.2020 was registered for commission of offences under Sections 376(2)(n)/506/34 of the IPC. Thereafter, upon a thorough investigation, the C.S No.270 dated 31.08.2020, a copy of which is present at Annexure-2, was filed exclusively against the Petitioner under Section 376(2)(n) of the IPC. Following committal proceedings, the case was numbered as C.T (S) Case No. 28 of 2020 and assigned to the Court of the learned Adhoc Additional District & Sessions Judge (FTSC), Angul. As of the date of



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filing of the present petition, the trial has not yet commenced.

4. It is pertinent to mention herein that in the interregnum between the filing of the charge sheet and the filing of the present petition, the parties have, as per the averments taken in the CRLMC petition, arrived at a full and final amicable settlement of their dispute. It is in this context that the present CRLMC petition has been filed by the accused-Petitioner with the aforementioned prayer. Earlier, by order dated 03.09.2025, pursuant to the averment taken in the CRLMC petition that the matter has been settled between the parties, this Court had directed the parties to file a Joint Affidavit setting out the alleged settlement and the terms, if any, thereof. In compliance, a Joint Affidavit has been filed on 08.09.2025, signed by both the Petitioner and the Informant-Opposite Party No.2, stating that a settlement was reached between the parties voluntarily and without any coercion, threat, or duress, and that the Informant-Opposite Party No.2 no longer desires to pursue the criminal proceedings against the Petitioner.



## **CONTENTIONS OF THE PETITIONER**

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5. Heard Mr. Bigyan Kumar Sharma, learned senior advocate appearing for the Petitioner. The learned senior counsel for the Petitioner, at the very outset, submits that the parties have arrived at an unconditional, genuine and voluntary settlement of their dispute, and that the prosecutrix has unequivocally expressed her desire not to pursue the prosecution. Referring to the joint affidavit, sworn by the parties and filed before this Court on 08.09.2025 in compliance with the Court's direction, the learned senior counsel contended that the settlement between the parties was reached freely and without any coercion, threat, persuasion, or duress. It was stated that the joint affidavit makes it is clear that the F.I.R was filed by the Prosecutrix under a misunderstanding, and, after the valid compromise between the parties, she is not willing to pursue the matter any further.

6. With regard to the alleged occurrence, the learned senior counsel for the Petitioner contended that on a fair reading of the FIR and the charge-sheet, the alleged



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occurrence does not disclose a case under the aegis of Section 376(2)(n) of the IPC but, at best, a case of consensual physical relationship. The learned senior counsel submitted that a clear distinction can be drawn between a mere breach of promise and false promise. The law is well settled that a mere breach of a promise to marry does not automatically constitute an offence under Section 376 of the IPC, unless it is shown affirmatively that the promise was false *ab initio* and was made with the sole design of inducing the sexual relationship. Additionally, the learned senior counsel for the Petitioner also contended that the medical examination of the Informant conducted pursuant to the FIR also does not reveal any symptom or sign of recent sexual intercourse. Equally, no bodily injury has also been detected on the person of the Victim. Such material fact of absence of any medical evidence, learned senior counsel submits, substantially undermines the prosecution case and further diminishes the likelihood of a conviction at trial.



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7. Lastly, the learned senior counsel for the Petitioner has made an attempt to impress upon this Court that the trial in the present case has not yet commenced and that the Prosecutrix, who is a material witness in the matter, does not support the prosecution case. Therefore, the possibility of conviction in the present case is remote and bleak. Moreover, given the fact of the full and final settlement arrived at between the parties, the learned senior counsel for the Petitioner submitted that in the event the matters ripens into a trial, it would only cause agony and tribulations to the parties who have presently settled into their respective happy individual lives. As such, the learned senior counsel for the Petitioner prayed that this Court, in exercise of its inherent powers and in order to prevent abuse of the process of the Court, ought to quash the impugned charge sheet and the criminal proceeding emanating therefrom.

#### **CONTENTIONS ON BEHALF OF THE STATE-PROSECUTION**

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8. Heard Mr. C. M. Singh, learned Additional Standing Counsel appearing for the State-prosecution.



Learned ASC has opposed the prayer of the Petitioner on the ground that the offence alleged in the present case is a grave and serious offence. The learned counsel contended that the offence under Section 376(2)(n) of the IPC can very well be considered as an offence against public order and the society at large. Moreover, it being a non-compoundable offence, the learned ASC submits that such an offence ought not to be quashed in exercise of this Court's inherent power under Section 482 Cr.P.C even if a settlement has been arrived at between the parties involved. Rather, the learned ASC contended that the criminal proceeding should be allowed to reach its natural conclusion via trial.

#### **CONTENTIONS ON BEHALF OF THE OPPOSITE PARTY No.2-INFORMANT**

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9. Heard Mr. Deepak Kumar Sahoo, learned counsel appearing for the Informant-Opposite Party No.2. The learned counsel, supporting the stance of the Petitioner, referred to the joint affidavit dated 08.09.2025 filed by the parties and contended that the affidavit has been sworn by the Informant-Opposite Party No.2 on her own volition and





without any coercion. The Learned counsel further stated that the Informant is no longer desirous of pursuing the prosecution and has no objection to the quashment of the present criminal proceedings against the Petitioner. It was submitted that initially the F.I.R was lodged out of a misunderstanding between the parties, and, at present, both the parties are leading their happy individual lives. Therefore, any further continuation of the criminal proceeding would serve no useful purpose and would only result in unnecessary hardship upon the parties and disturbance of their personal lives. In such view of the matter, the learned counsel for the Opposite Party No.2- Informant submitted that he has no objection if the present criminal proceeding against the Petitioner is quashed by this Court in exercise of its inherent powers.

### **ANALYSIS OF THE COURT**

**10.** Heard learned counsel for the respective parties, perused the documents on record along with the joint affidavit filed by the Petitioner and the Opposite Party No.2. The case at hand involves an allegation of commission of



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offence under Section 376(2)(n) of the IPC. At the time of the hearing of the case, it was contended from the side of the Petitioner that the matter has been mutually settled between the parties. Upon such contention, this Court, vide order dated 03.09.2025, had directed the parties to file a joint affidavit reflecting the fact of such compromise. Pursuant to such direction of the Court, the parties have filed a duly sworn Joint Affidavit on 08.09.2025. On a perusal of said Joint Affidavit, it is revealed that both the Petitioner and the Opposite Party No.2-Informant have arrived at a compromise and settled their dispute amicably. The affidavit states that initially, the F.I.R against the Petitioner was lodged due to some misunderstanding between the parties. However, at present, the parties are leading their separate lives peacefully and wish to put an end to the proceeding. As per the said Joint Affidavit, the Informant-Opposite Party No.2 no longer wishes to pursue the prosecution. On the strength of such compromise between the parties, the Petitioner has filed the present



CRLMC petition to quash the impugned charge-sheet and the resultant criminal proceeding.

**11.** It is needless to mention that the matter at hand involves certain peculiar facts and circumstances. However, before proceeding with the determination of the prayer of the Petitioner, it is pertinent to re-state the scope of the powers of this Court under section 528 of the BNSS. The fundamental principles to be borne in mind by this Court while exercising its inherent powers under Section 528 of the BNSS (erstwhile Section 482 of the Cr.P.C) are now well settled in light of the decision of the Hon'ble Apex Court in *State of Haryana v. Ch. Bhajan Lal*, reported in *1992 Supp (1) SCC 335*, wherein, at para 102, the Hon'ble Supreme Court has rendered seven illustrative non-exhaustive instances where it would be appropriate for this Court to quash an FIR/ criminal case. Such principles have time and again been reiterated by the Hon'ble Supreme Court in a catena of decisions (more recently, in *B.N. John v. State of U.P.*, reported in *2025 SCC OnLine SC 7* and *Ajay Malik v. State of Uttarakhand*, reported in *2025 SCC*



*OnLine SC 185*). In *Ajay Malik's case* (*supra*), the Apex Court observed;

*“8. It is well established that a High Court, in exercising its extraordinary powers under Section 482 of the CrPC, may issue orders to prevent the abuse of court processes or to secure the ends of justice. These inherent powers are neither controlled nor limited by any other statutory provision. However, given the broad and profound nature of this authority, the High Court must exercise it sparingly. The conditions for invoking such powers are embedded within Section 482 of the CrPC itself, allowing the High Court to act only in cases of clear abuse of process or where intervention is essential to uphold the ends of justice.”*

(Emphasis supplied)

12. Similarly, the Hon'ble Supreme Court in *Punit Beriwalla v. State (NCT of Delhi)*, reported in *2025 SCC OnLine SC 983*, reiterating the cautionary note echoed in a myriad of its earlier pronouncements, has observed that;

*“29. It is settled law that power of quashing of a complaint/FIR should be exercised sparingly with*



*circumspection and while exercising this power, the Court must believe the averments and allegations in the complaint to be true and correct. It has been repeatedly held that save in exceptional cases where non-interference would result in miscarriage of justice, the Court and the judicial process should not interfere at the stage of investigation of offences. Extraordinary and inherent powers of the Court should not be used in a routine manner according to its whims or caprice.”*

(Emphasis supplied)

13. In the instant case at hand, the offence alleged against the Petitioner is non-compoundable in nature. With regard to the quashing of proceedings involving non-compoundable offences, the Hon’ble Apex Court in ***B.S. Joshi v. State of Haryana***, reported in ***(2003) 4 SCC 675***, has held that Section 320 Cr.P.C does not limit or control the powers vested in High Court under Section 482 Cr.P.C, and the High Court is empowered to quash criminal



proceedings/FIR, even if non-compoundable offences are involved. The aforesaid view has also been reiterated in ***Nikhil Merchant v. CBI & Anr.***, reported in (2008) 9 SCC 677 and also in ***Manoj Sharma v. State & Ors.***, reported in (2008) 16 SCC 1. In fact, in ***Shiji @ Pappu & Ors. v. Radhika & Anr.***, reported in (2011) 10 SCC 705, the Hon'ble Apex Court has made the following observations;

*“17. It is manifest that simply because an offence is not compoundable under Section 320 IPC is by itself no reason for the High Court to refuse exercise of its power under Section 482 Cr.P.C. That power can in our opinion be exercised in cases where there is no chance of recording a conviction against the accused and the entire exercise of a trial is destined to be an exercise in futility. There is a subtle distinction between compounding of an offence by the parties before the trial court or in appeal on one hand and the exercise of power by the High Court to quash the prosecution under Section 482 Cr.P.C. on the other. While a Court trying an accused or hearing an appeal against conviction, may not be competent to permit compounding of an offences based on a settlement arrived at between the parties in cases where the*



*offences are non-compoundable under Section 320, the High Court may quash the prosecution even in cases where the offences with which the accused stand charged are non-compoundable. The inherent powers of the High Court under Section 482 Cr.P.C. are not for that purpose controlled by Section 320 Cr.P.C.”*

(Emphasis supplied)

14. Additionally, this court is also well-aware of the fact that the offence involved in the present case, i.e. Section 376(2)(n) of the IPC, is a grave and serious offence. While it is true that the Hon’ble Apex Court has time and again cautioned against quashing of criminal proceedings involving serious offences (see ***Gian Singh v. State of Punjab &Anr.***, reported in (2012) 10 SCC 303; ***Narinder Singh & Ors. v. State of Punjab &Anr.***, reported in (2014) 6 SCC 466; and ***Parbatbhai Aahir v. State of Gujarat***, reported in (2017) 9 SCC 641). Such position is, however, not set in stone. In appropriate cases, considering the facts of the particular case, the Supreme Court as well as various constitutional Courts of this country have exercised the



power to quash the proceedings involving Section 376 of the IPC (see *Jatin Agarwal v. State of Telangana &Anr.*, reported in *2022 SCC OnLine SC 1969*). In *Kapil Gupta v. State (NCT of Delhi) &Anr.*, reported in *(2022) 15 SCC 44*, the Hon'ble Supreme Court, while dealing with a case wherein a petition for quashing an FIR registered under Section 376 was dismissed by the High Court, after due consideration of its previous decision in *Narinder Singh & Ors. v. State of Punjab &Anr.*, reported in *(2014) 6 SCC 466*, quashed the impugned criminal proceeding on the primary ground that the charges were not yet framed in the case and that the respondent was not supporting the case, therefore, the proceeding was bound to culminate in nothing more than an acquittal. Furthermore, the Apex Court also observed that denying the request of the parties to quash the impugned proceeding would only overburden the courts and subject the Respondent to more agony. While doing so, the Hon'ble Apex Court has also made the following observations;





*“12. It can thus be seen that this Court has clearly held that though the Court should be slow in quashing the proceedings wherein heinous and serious offences are involved, the High Court is not foreclosed from examining as to whether there exists material for incorporation of such an offence or as to whether there is sufficient evidence which if proved would lead to proving the charge for the offence charged with. The Court has also to take into consideration as to whether the settlement between the parties is going to result into harmony between them which may improve their mutual relationship.*

*13. The Court has further held that it is also relevant to consider as to what is the stage of the proceedings. It has been observed that if an application is made at a belated stage wherein the evidence has been led and the matter is at the stage of arguments or judgment, the Court should be slow to exercise the power to quash the proceedings. However, if such an application is made at an initial stage before commencement of trial, the said factor will weigh with the court in exercising its power.”*

(Emphasis supplied)



15. In much the same way, recently in *Madhukar v. State of Maharashtra*, reported in *2025 SCC OnLine SC 1415*, appeals were filed before the Hon'ble Supreme Court arraying the common order wherein the High Court had dismissed petitions filed under section 482 Cr.P.C for quashing of criminal proceedings involving 376 IPC, where an affidavit was filed by complainant that the matter has been amicably resolved and she does not wish to continue with the proceeding. The primary reason for the High Court to refuse quashing of the criminal proceeding was that the Section 376 IPC is a serious offence which is non-compoundable in nature, and as such, it cannot be quashed merely on the basis of settlement or monetary compensation. The Hon'ble Apex Court, while allowing the appeals and setting-aside the impugned order of the High Court, made the following observation;

“6. At the outset, we recognise that the offence under Section 376 IPC is undoubtedly of a grave and heinous nature. Ordinarily, quashing of proceedings involving such offences on



the ground of settlement between the parties is discouraged and should not be permitted lightly. However, the power of the Court under Section 482 CrPC to secure the ends of justice is not constrained by a rigid formula and must be exercised with reference to the facts of each case.

7. In the present matter, we are confronted with an unusual situation where the FIR invoking serious charges, including Section 376 IPC, was filed immediately following an earlier FIR lodged by the opposing side. This sequence of events lends a certain context to the allegations and suggests that the second FIR may have been a reactionary step. More importantly, the complainant in the second FIR has unequivocally expressed her desire not to pursue the case. She has submitted that she is now married, settled in her personal life, and continuing with the criminal proceedings would only disturb her peace and stability. Her stand is neither tentative nor ambiguous, she has consistently maintained, including through an affidavit on record, that she does not support the prosecution and wants the matter to end. The parties have also amicably resolved their differences and arrived at a mutual understanding. In these circumstances, the continuation of the trial



would not serve any meaningful purpose. It would only prolong distress for all concerned, especially the complainant, and burden the Courts without the likelihood of a productive outcome.”

(Emphasis supplied)

16. In view of the aforesaid analysis, it is clear that the ultimate consideration to be had while dealing with a petition filed under section 528 of the BNSS wherein a prayer has been made to quash a criminal proceeding, is to give effect to any order passed under the code, or to prevent the abuse of the process of any Court or to secure the ends of justice. Reverting to the case at hand, specifically the Joint Affidavit dated 08.09.2025, it is clear that the Petitioner and the Informant-Opposite Party No.2 have arrived at a compromise and the Informant is not desirous of pursuing the matter any further. The parties have clearly stated in the joint affidavit that they have reached the compromise on their own volition and without any coercion, threat or persuasion. Moreover, the letter dated 25.09.2025 issued by the IIC, Banarpal Police Station,



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addressed to the learned Advocate General, Odisha, indicates that upon examination of the Informant, it has been ascertained that the dispute between the parties has been amicably settled, thereby lending support to the aforesaid joint affidavit. As such, no doubt is cast on the genuineness of the compromise arrived at between the parties. Since it is clear that the prosecutrix does not support the case of the prosecution the chances of conviction are also quite bleak. Further, taking into consideration the lack of medical evidence in support of the case and the compromise arrived at between the parties, as evidenced by the Joint Affidavit dated 08.09.2025, this Court is of the considered view that any further continuation of the present criminal proceeding would only lead to further disturbance in the settled lives of the parties and force upon them avoidable hardships.

**17.** Moreover, on a careful examination of the materials on record, taking into consideration the wish and desire of the prosecutrix, and upon a close scrutiny of the joint affidavit filed by the parties, the genuineness of which has



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been duly verified by the local police, this court observes that the matter has been amicably settled between the parties and they do not want to proceed further in this case. Also, both the Petitioner and the Informant are major and quite conscious of the outcome of the amicable settlement. Most importantly, considering the matter from the viewpoint of the Prosecutrix that she wants to continue with her happy individual life without being interjected by the present criminal case and that some element of consent by the Prosecutrix at the initial stage cannot be ruled out in the backdrop of an assurance of marriage, which could not materialize at the subsequent stage, this Court is of the considered view that in the event the matter is sent for trial, the same would not yield any result. As such, this Court is convinced that in the given facts, the present case is a fit case where this Court should exercise its inherent powers.

**18.** As such, in exercise of its inherent powers under section 528 of the BNSS (erstwhile section 482 of Cr.P.C), in order to secure the ends of justice, this Court deems it proper to quash the impugned Chargesheet C.S No.270 at



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Annexure-2 and the subsequent criminal proceeding emanating therefrom, so far as the present Petitioner is concerned. Accordingly, the same are hereby quashed.

19. The CRLMC petition is allowed. However, there shall be no order as to costs.

**(A.K. Mohapatra)**  
**Judge**

*Orissa High Court, Cuttack*  
*The 1<sup>st</sup> of May, 2026/ Rubi/ Jr.Stenographer*